



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

SB 1006: campaign finance; aggregate report; amount

KOLODIN FLOOR AMENDMENT

Requires the Secretary of State to biennially adjust the in-state contribution reporting threshold increased by the underlying Concurrent Resolution based on changes in the Consumer Price Index for the Phoenix-Mesa-Scottsdale statistical area.

KOLODIN FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1006
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 16-926, Arizona Revised Statutes, is amended to
3 read:

4 16-926. Campaign finance reports; contents

5 A. A committee shall file campaign finance reports with the filing
6 officer. The secretary of state's instructions and procedures manual
7 adopted pursuant to section 16-452 shall prescribe the format for all
8 reports and statements.

9 B. A campaign finance report shall set forth:

10 1. The amount of cash on hand at the beginning of the reporting
11 period.

12 2. Total receipts during the reporting period, including:

13 (a) An itemized list of receipts in the following categories,
14 including the source, amount and date of receipt, together with the total
15 of all receipts in each category:

16 (i) Contributions from in-state individuals whose contributions
17 exceed ~~\$100~~ \$200 for that election cycle, including identification of the
18 contributor's occupation and employer. Notwithstanding section 16-901,
19 paragraph 29, subdivision (a), a person whose residential address is
20 protected from public disclosure pursuant to section 16-153 is not required
21 to disclose the person's residential address and shall instead provide an
22 alternate mailing address.

23 (ii) Contributions from out-of-state individuals, including
24 identification of the contributor's occupation and employer.

25 (iii) Contributions from candidate committees.

26 (iv) Contributions from political action committees.

27 (v) Contributions from political parties.

28 (vi) Contributions from partnerships.

1 (vii) For a political action committee or political party,
2 contributions from corporations and limited liability companies, including
3 identification of the corporation's or limited liability company's file
4 number issued by the corporation commission.

5 (viii) For a political action committee or political party,
6 contributions from labor organizations, including identification of the
7 labor organization's file number issued by the corporation commission.

8 (ix) For a candidate committee, a candidate's contribution of
9 personal monies.

10 (x) All loans, including identification of any endorser or guarantor
11 other than a candidate's spouse, and the contribution amount endorsed or
12 guaranteed by each.

13 (xi) Rebates and refunds.

14 (xii) Interest on committee monies.

15 (xiii) The fair market value of in-kind contributions received.

16 (xiv) Extensions of credit that remain outstanding, including
17 identification of the creditor and the purpose of the extension.

18 (b) The aggregate amount of contributions from all in-state
19 individuals whose contributions do not exceed ~~\$100~~ \$200 for the election
20 cycle.

21 3. An itemized list of all disbursements in excess of \$250 during
22 the reporting period in the following categories, including the recipient,
23 the recipient's address, a description of the disbursement and the amount
24 and date of the disbursement, together with the total of all disbursements
25 in each category:

26 (a) Disbursements for operating expenses.

27 (b) Contributions to candidate committees.

28 (c) Contributions to political action committees.

29 (d) Contributions to political parties.

30 (e) Contributions to partnerships.

31 (f) For a political action committee or political party,
32 contributions to corporations and limited liability companies, including
33 identification of the corporation's or limited liability company's file
34 number issued by the corporation commission.

35 (g) For a political action committee or political party,
36 contributions to labor organizations, including identification of the labor
37 organization's file number issued by the corporation commission.

38 (h) Repayment of loans.

39 (i) Refunds of contributions.

40 (j) Loans made.

41 (k) The value of in-kind contributions provided.

42 (l) Independent expenditures that are made to advocate the election
43 or defeat of a candidate, including identification of the candidate, office
44 sought by the candidate, election date, mode of advertising and
45 distribution or publication date.

1 (m) Expenditures to advocate the passage or defeat of a ballot
2 measure, including identification of the ballot measure, ballot measure
3 serial number, election date, mode of advertising and distribution or
4 publication date.

5 (n) Expenditures to advocate for or against the issuance of a recall
6 election order or for the election or defeat of a candidate in a recall
7 election, including identification of the officer to be recalled or
8 candidate supported or opposed, mode of advertising and distribution or
9 publication date.

10 (o) Any other disbursements or expenditures.

11 4. The total sum of all receipts and disbursements for the reporting
12 period.

13 5. A certification by the committee treasurer, issued under penalty
14 of perjury, that the contents of the report are true and correct.

15 C. For the purposes of reporting under subsection B of this section:

16 1. A contribution is deemed to be received either on the date the
17 committee knowingly takes possession of the contribution or the date of the
18 check or credit card payment. For an in-kind contribution of services, the
19 contribution is deemed made either on the date the services are performed
20 or the date the committee receives the services.

21 2. An expenditure or disbursement is deemed made either on the date
22 the committee authorizes the monies to be spent or the date the monies are
23 withdrawn from the committee's account. For a transaction by check, the
24 expenditure or disbursement is deemed made on the date the committee signs
25 the check. For a credit card transaction on paper, the expenditure or
26 disbursement is deemed made on the date the committee signs the
27 authorization to charge the credit card. For an electronic transaction, an
28 expenditure or disbursement is deemed made on the date the committee
29 electronically authorizes the charge. For an agreement to purchase goods
30 or services, the expenditure or disbursement is deemed made either on the
31 date the parties enter into the agreement or the date the purchase order is
32 issued.

33 3. A committee may record its transactions using any of the methods
34 authorized by this subsection but for each type of contribution,
35 expenditure or disbursement made or received, the committee shall use a
36 consistent method of recording transactions throughout the election cycle.

37 D. The amount of an in-kind contribution of services shall be equal
38 to the usual and normal charges for the services on the date performed.

39 E. If any receipt or disbursement is earmarked, the committee shall
40 report the identity of the person to whom the receipt or disbursement is
41 earmarked.

42 F. Candidate committee reports shall be cumulative for the election
43 cycle to which they relate. Political action committee and political party
44 reports shall be cumulative for a two-year election cycle ending in the
45 year of a statewide general election. If there has been no change during

1 the reporting period in an item listed in the immediately preceding report,
2 only the amount need be carried forward.

3 G. For a political action committee that receives individual
4 contributions through a payroll deduction plan, that committee is not
5 required to separately itemize each contribution received from the
6 contributor during the reporting period. In lieu of itemization, the
7 committee may report all of the following:

8 1. The aggregate amount of contributions received from the
9 contributor through the payroll deduction plan during the reporting period.

10 2. The individual's identity.

11 3. The amount deducted per pay period.

12 H. An entity that makes independent expenditures or ballot measure
13 expenditures in excess of \$1,000 during a reporting period shall file an
14 expenditure report with the filing officer for the applicable reporting
15 period. Expenditure reports shall identify the candidate or ballot measure
16 supported or opposed, office sought by the candidate, if any, election
17 date, mode of advertising and first date of publication, display, delivery
18 or broadcast of the advertisement.

19 <<Sec. 2. Section 16-931, Arizona Revised Statutes, is amended to
20 read:

21 16-931. Biennial adjustments; committee registration;
22 contribution limits

23 A. In January of each odd-numbered year, the secretary of state
24 shall [increase]:

25 1. [INCREASE] the committee registration thresholds specified in
26 section 16-905, subsections A and C by [one hundred dollars] [\$100].

27 2. [INCREASE] the contribution limits specified in article 1.2 of
28 this chapter by [one hundred dollars] [\$100].

29 [3. ADJUST TO THE NEAREST DOLLAR THE DOLLAR AMOUNTS PRESCRIBED IN
30 SECTION 16-926, SUBSECTION B, PARAGRAPH 2, SUBDIVISION (a), ITEM (i) AND
31 SUBDIVISION (b) RELATING TO CONTRIBUTIONS FROM IN-STATE INDIVIDUALS BY THE
32 TWO-YEAR PERCENTAGE CHANGE IN THE CONSUMER PRICE INDEX FOR ALL URBAN
33 CONSUMERS, PHOENIX-MESA-SCOTTSDALE, PUBLISHED BY THE UNITED STATES
34 DEPARTMENT OF LABOR, BUREAU OF LABOR STATISTICS.]

35 B. The secretary of state shall publish the revised amounts and make
36 the amounts available to election officials, candidates, committees and the
37 public.>>

38 Enroll and engross to conform

39 Amend title to conform

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